

March 23, 2026 Truckee Probate Tentative Rulings

1. PR0000917 In Re the Matter of Delio K Estevez

Appearance required by the guardian and counsel. The Court requires a status as the previously ordered accounting has not been filed.

2. PR0000980 In the Matter of Ana Castaneda Alanis

This matter is before the Court on a petition for compromise of minor's claims. Appearances by counsel for Petitioner and the Petition/guardian ad litem are required. Petitioner is directed to file a corrected Petition to correct the below deficiencies prior to the hearing. If not filed prior to the hearing, the Court intends to continue the hearing to April 13, 2026 at 1:30 p.m.

- The application appointing guardian ad litem was rejected and no corrected application has been filed.
- The age of the minor is incorrect in 2(c) at the time of filing.
- Section 13(a) – the total medical expenses (13(a)(1)) minus the total of reductions (13(a)(3)) does not equal the number in 13(a)(5) of total amount of statutory or contractual liens. The discrepancy needs to be remedied.
- Attachment 9a contains an Invoice from Truckee Fire Protection District showing a balance due of \$4,179.85. Clarify whether this invoice has this been paid, waived, or if it will it be paid from the settlement agreement.
- Attachment 9a medical records reflect the minor was hospitalized and had surgery. Such is not reflected in Section 8 regarding Treatment.
- Attachment 12 does not include the “reasons for the apportionment of the settlement payments between the claimant and each other plaintiff,” it only includes the apportionment.
- The Declaration of Michelle L. Olivarez states "Wilshire Law Firm was forced to advance a total of \$2,669.20 in costs associated with this matter.... Costs are divided between both heirs." Clarify what this statement means.
- There is no explanation of why certain costs were necessary and expended in this case.
- In general, although the Court acknowledges an indication the policy limits for this very auto/cyclists collision are \$15,000 / \$30,000, the expenses for obtaining medical records seem exorbitant, and the overall costs and fees in a matter in which policy limits were very likely offered early on seem excessive. In addition, there is no indication any other available funds were explored other than perhaps an asset check being performed. As presented, the Court is hard pressed to find this settlement is in the minor's best interests.

3. PR0000851 In the Matter of Richard B. Bloomfield

No appearances are required. The petition for final distribution, for allowance of compensation to attorneys for ordinary services, and for waiver of compensation for personal representative, is granted as prayed.